



Central Valley Regional Water Quality Control Board

14 April 2021

Meng Moua
County of Fresno Public Works and Planning
2220 Tulare St., 6th floor
Fresno, CA 93721

CERTIFIED MAIL
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NOTICE OF APPLICABILITY (NOA); STATE WATER RESOURCES CONTROL BOARD ORDER WQ-2014-0153-DWQ; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; COUNTY OF FRESNO, DEPARTMENT OF PUBLIC WORKS AND PLANNING; MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY; FRESNO COUNTY

On 6 February 2020, Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD) prepared by Provost and Pritchard Consulting Group, signed and stamped by Zheng Teng (RCE 68,783) on behalf of the County of Fresno, Department of Public Works and Planning (Discharger). The RWD was for the Monte Verdi Estates (County Service Area [CSA] 44D) Wastewater Treatment Facility (Facility or WWTF). The Facility is currently regulated under Waste Discharge Requirements (WDRs) Order No. 92-203. Supplemental information was also submitted, including a Title 22 Engineering Report and a Notice of Intent for the for the State Water Resources Control Board's (State Water Board) Order WQ 2016-0068-DDW, *Water Reclamation Requirements for Recycled Water Use* (Reclamation General Order). The RWD describes upgrades to the WWTF, specifically converting the existing sequencing batch reactor (SBR) system to a membrane bioreactor (MBR) system and adding recycled water use areas. The modifications to the WWTF were completed in July 2019.

Based on the information provided and a review of available information, the Facility treats and disposes of less than 100,000 gallons per day (gpd) of domestic wastewater and is therefore eligible for coverage under the general and specific conditions of the State Water Board Water Quality Order 2014-0153-DWQ *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order). This letter serves as formal notice that the General Order is applicable to your system and the wastewater discharge described below. You are hereby assigned enrollee

KARL E. LONGLEY ScD, P.E., CHAIR | PATRICK PULUPA, ESQ., EXECUTIVE OFFICER

1685 E Street, Fresno, CA 93706 | www.waterboards.ca.gov/centralvalley

number **2014-0153-DWQ-R5344** for your system. After WDRs Order 92-203 has been rescinded, coverage under the General Order will become effective.

You should familiarize yourself with the entire General Order and its attachments enclosed with this letter, which describe mandatory discharge and monitoring requirements. Sampling, monitoring, and reporting requirements applicable to your treatment and disposal methods must be completed in accordance with the appropriate treatment system sections of the General Order and the attached Monitoring and Reporting Program (MRP) No. **2014-0153-DWQ-R5344**. This MRP was developed after consideration of your waste characterization and site conditions described in the attached memorandum.

DISCHARGE DESCRIPTION

CSA 44D provides water and sewer services to the Monte Verdi Estates Subdivision, which consists of 125 residential lots adjacent to Willow Avenue about 2,000 feet south of Friant Road. The community is entirely residential with no commercial or industrial business present. The WWTF is located at the southwest corner of the Monte Verdi Estates Subdivision.

The upgraded wastewater treatment system includes an influent pump station with five underground influent emergency overflow tanks, two spiral fine screens, an MBR system (consisting of an anoxic tank, pre-aeration tank, and two membrane bioreactors), chlorine disinfection, an effluent/reclaimed water storage tank, and an aerobic sludge digester (see Attachment C for a process flow diagram). Treated wastewater will be used to irrigate, via sprinklers and drip irrigation, 12.7 acres of grass, trees, and bushes that are accessible to the public (Use Areas). The WWTF has a design treatment capacity of 39,000 gpd, and the leach field has a disposal capacity of 32,500 gpd.

Fresno County operates and manages the WWTF. The Monte Verdi Estates Homeowners Association (Homeowners Association) will be responsible for the distribution of the recycled water from the effluent/reclaimed water storage tank to the Use Areas. The reclamation of the disinfected tertiary-treated effluent will be regulated under the State Water Resources Control Board Order WQ 2016-0068-DDW, *Water Reclamation Requirements for Recycled Water Use* (Reclamation General Order).

FACILITY SPECIFIC REQUIREMENTS AND EFFLUENT LIMITATIONS

The Discharger will maintain exclusive control over the discharge (until transferred to the Homeowners Association as authorized in the separately-issued NOA for the Reclamation General Order) and shall comply with the terms and conditions of this NOA, General Order 2014-0153-DWQ, all attachments, and MRP No. 2014-0153-DWQ-R5344.

In accordance with Section B.1.a of the General Order, the total discharge from the WWTF to either the Use Areas or leach field **shall not exceed 39,000 gpd as a**

monthly average. In addition, the discharge of treated wastewater to the leach field shall not exceed **32,500 gpd as a monthly average**. By **14 July 2021**, the Discharger shall submit a workplan describing how the Discharger will ensure compliance with the 32,500 gpd flow limitation to the leach field during the wet season when there is no or limited irrigation demand at the Use Area.

The General Order states in Section D.1.a that the discharge shall not exceed the applicable effluent limitations as described in Table 4 of the General Order. The low-threat total nitrogen (as N) effluent limit of 50% removal is applicable as specified in Table 1 below.

Table 1 – Nitrogen Effluent Limitation

Constituent	Annual Average
Total Nitrogen (% Reduction)	50 % (see 1 below)

1. The value represents the minimum percent reduction compared to the untreated wastewater value. Reduction shall be calculated on an annual basis. In no case shall the reduction result in an effluent limit lower than 10 mg/L total nitrogen.

The General Order states in Section B.1 that the Discharger shall comply with the setbacks as described in Table 3 of the General Order. This table summarizes different setback requirements for wastewater treatment system equipment, activities, land application areas, and storage and/or treatment ponds from sensitive receptors and property lines where applicable. The Discharger shall comply with the applicable setback requirements, as summarized in the Table 2 below:

Table 2 - Site-Specific Applicable Setback Requirements

Equipment or Activity	Domestic Well (feet)	Flowing Stream (feet)	Ephemeral Stream Drainage (feet)	Property Line (feet)	Lake or Reservoir (feet)
Septic Tank, Treatment Unit, Treatment System, or Collection System	150	50	50	5	200
Land Application Area (disinfected tertiary recycled water)	50	25	50	25	200
Leach Field	100	100	50	5	100

Section B.7.f of the General Order states if recycled water is applied, it shall comply with the Title 22 water recycling criteria, the General Order, this NOA, a Title 22 Engineering Report, and any State Water Resources Control Board, Division of Drinking Water (DDW) approval conditions. Further, prior to commencing the reclamation of the recycled water on the use area, the Discharger must receive coverage under the Reclamation General Order. Per the Facility's Title 22 Engineering Report, Title 22

recycling criteria, and DDW's conditional approval letter, the Discharger must comply with the following treatment specifications.

1. Use of recycled water shall comply with the terms and conditions of the most current Title 22 regulations.
2. Effluent 5-day biochemical oxygen demand (BOD₅) shall not exceed 10 mg/L as a monthly average nor 20 mg/L as a daily maximum.
3. Effluent total suspended solids (TSS) shall not exceed 10 mg/L as a monthly average nor 20 mg/L as a daily maximum.
4. The treated effluent total coliform, immediately prior to the effluent/reclaimed water storage tank, shall not exceed:
 - a. 2.2 most probable number (MPN) per 100 mL, as a 7-day median;
 - b. 23 MPN/100 mL in more than one sample in any 30-day period; and
 - c. 240 MPN at any time.
5. The turbidity of filtered wastewater, prior to disinfection, shall not exceed:
 - a. 0.2 NTU more than 5 percent of the time within a 24-hour period,
 - b. 0.5 NTU at any time.
6. CT, the product of chlorine residual concentration and modal contact time measured at the same point, shall not be less than 450 milligrams-minutes per liter at all times, with a modal contact time of at least 90 minutes. Prior to reclaiming treated effluent at the Use Areas, the Discharger shall install a chlorine analyzer at the CT compliance point as required in the June 2020 DDW conditional approval.
7. In the case of a failure or inadequate treatment (i.e., filter effluent turbidity exceeds 0.2 NTU more than 5% of the time within a 24-hour period; or the turbidity exceeds 0.5 NTU at any time; or the CT is less than 450 milligram-minutes per liter with a modal contact time of at least 90 minutes), the Facility must automatically divert treated effluent flows back to the Facility's influent wet well or the leach field and have automatic alarms sent to the operators.

The Discharger shall comply with all applicable sections of the General Order, including:

1. Activated Sludge System requirements in Section B.4 of the General Order;
2. Subsurface Disposal System requirements in Section B.6 of the General Order;

3. Land Application System and Recycled Water System requirements in Section B.7 of the General Order;
4. Sludge/Solids/Biosolids Disposal requirements in Section B.8 of the General Order; and
5. Groundwater and Surface Water Limitations specified in Section C.1 of the General Order

Provision E.1 of the General Order requires dischargers enrolled under the General Order to prepare and implement the following reports **by 14 July 2021**:

- Spill Prevention and Emergency Response Plan (Provision E.1.a.).
- Sampling and Analysis Plan (Provision E.1.b).
- Sludge Management Plan (Provision E.1.c).

A copy of the Spill Prevention and Emergency Response Plan and the Sampling and Analysis Plan shall be maintained at the treatment facility and shall be presented to the Regional Water Board staff upon request. The sludge management plan shall be submitted to the Central Valley Water Board **by 14 July 2021**.

As stated in Section E.2.w., in the event any change in control or ownership of the Facility or wastewater disposal areas, the Discharger must notify the succeeding owner or operator of the existence of this General Order by letter, a copy of which shall be immediately forwarded to the Central Valley Water Board Executive Officer.

Failure to comply with the requirements in this NOA, General Order 2014-0153-DWQ, with all attachments, and **MRP No. 2014-0153-DWQ-R5344** could result in an enforcement action as authorized by provisions of the California Water Code. Discharge of wastes other than those described in this NOA is prohibited. If the method of waste disposal changes from that described in this NOA, you must submit a new Report of Waste Discharge describing the new operation.

The required annual fee specified in the annual billing from the State Water Board shall be paid until this NOA is officially terminated. You must notify this office in writing if the discharge regulated by the General Order ceases, so that we may terminate coverage and avoid unnecessary billing.

On 31 May 2018, the Central Valley Water Board adopted Basin Plan amendments incorporating new strategies for addressing ongoing salt and nitrate accumulation in the Central Valley as part of the Central Valley Salinity Alternatives for Long-Term Sustainability (**CV-SALTS**) initiative. Further details of these strategies are discussed in the enclosed memorandum. As these strategies are implemented, the Central Valley Water Board may find it necessary to modify the requirements of this NOA to ensure the goals of the Salt and Nitrate Control Program are met.

All monitoring reports and other correspondences shall be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less

than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the Central Valley Water Board office at 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 201081,
Facility Name: Fresno County Monte Verde Estates (CSA 44D) WWTF,
Order: 2014-0153-DWQ-R5344.

In order to conserve paper and reduce mailing costs, a paper copy of General Order WQO 2014-0153-DWQ has been sent only to the Discharger. Others are advised that the [General Order](#) is available on the State Water Board's website (http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2014/wqo2014_0153_dwq.pdf).

All documents, including responses to inspections and written notifications, submitted to comply with this NOA shall be directed, via the paperless office system, to the Compliance and Enforcement Unit, attention to Russell Walls. Mr. Walls can be reached at (559) 488-4392 or Russell.Walls@waterboards.ca.gov. Questions regarding the permitting aspects of the NOA, and notification for termination of coverage under the Small Domestic General Order, shall be directed, via the paperless office system, to the WDR Permitting Unit, attention Jeff Robins. Jeff Robins can be reached at (559) 445-5976 or by email at Jeff.Robins@waterboards.ca.gov.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Resources Control Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Resources Control Board must receive the petition by 5:00 p.m., 30 days after the date of this NOA, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Resources Control Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the internet at [Copies of the laws and regulations applicable to filing petitions](#) (https://www.waterboards.ca.gov/public_notices/petitions/water_quality) or will be provided upon request.

WDRs Order 92-203 are proposed to be rescinded at the 17/18 June Meeting of the Central Valley Water Board. Upon rescission of your individual WDRs, coverage for your Facility under the General Order shall be applicable under this Notice of

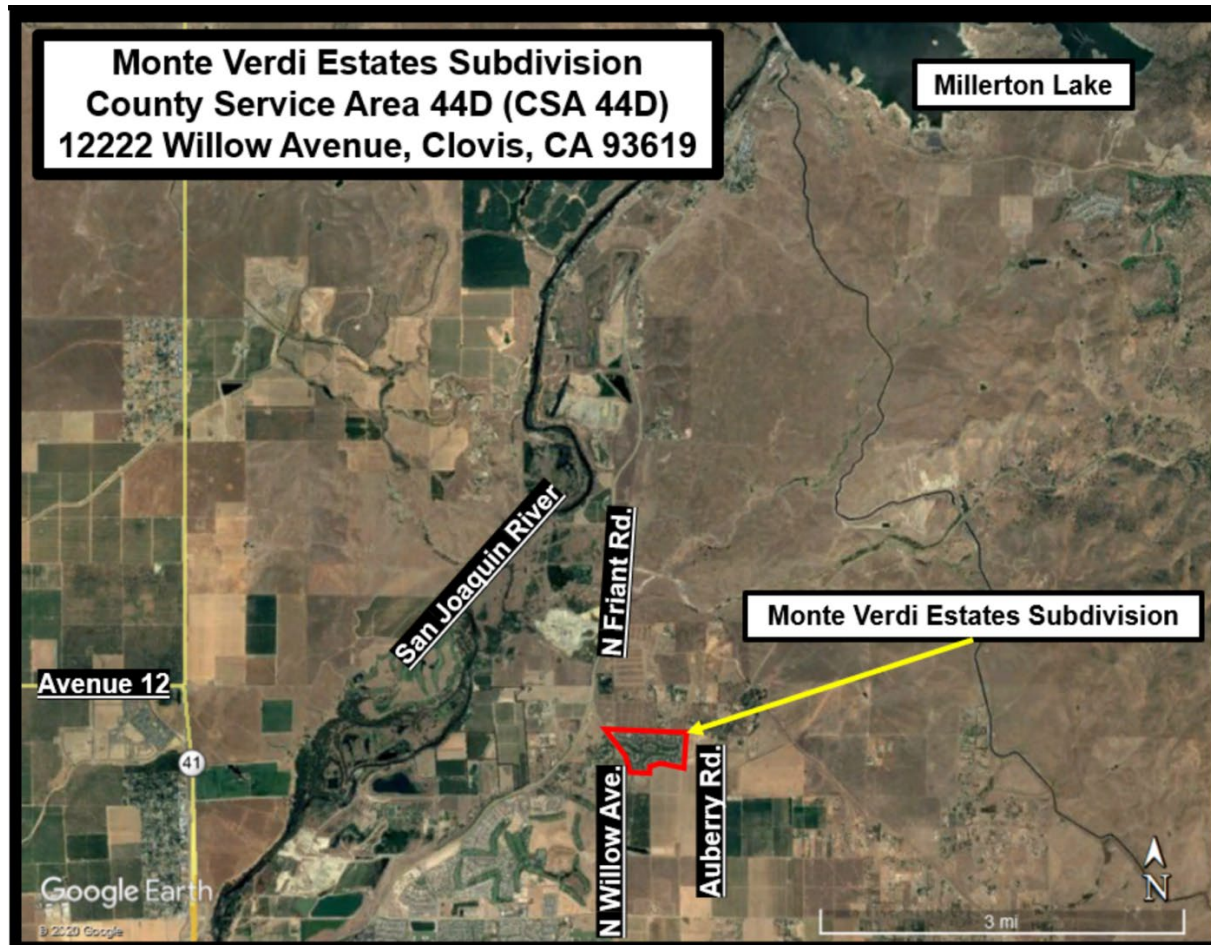
14 April 2021

Applicability. If you have any questions regarding this matter, please contact Jeff Robins by phone at (559) 445-5976 or by email at Jeff.Robins@waterboards.ca.gov.



for Patrick Pulupa
Executive Officer

- Attachments:
- Attachment A – Site Location Map
 - Attachment B – Site Plan Map
 - Attachment C – Process Flow Diagram
- Enclosures:
- Monitoring and Reporting Program 2014-0153-DWQ-R5344
 - Staff Review Memorandum for Fresno County #44D Monte Verde Estates WWTF
 - State Water Resources Control Board Order WQ 2014-0153-DWQ (Discharger only)
- cc:
- David Lancaster, State Water Resources Control Board, OCC, Sacramento (via email)
 - Laurel Warddrip, State Water Resources Control Board, DWQ, Sacramento (via email)
 - Russell Walls, Central Valley Water Board, Fresno (via email)
 - Jose Robledo, State Water Resources Control Board, DDW, Fresno (via email)
 - Richard Singleton, Fresno County Dept. of Public Works and Planning (via email)
 - Steven White, Fresno County Dept. of Public Works and Planning (via email)
 - Sebastian Artal, Fresno County Dept. of Public Works and Planning (via email)
 - Fresno County Environmental Health, Fresno, CA
 - Debbie Webster, CVCWA (via email)
 - Zheng “Jerry” Teng, Provost and Pritchard Consulting Group (via email)



ATTACHMENT A – SITE LOCATION MAP

NOTICE OF APPLICABILITY 2014-0153-DWQ-R5344

FOR

FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING
MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY

FRESNO COUNTY

Drawing Reference: Google Earth



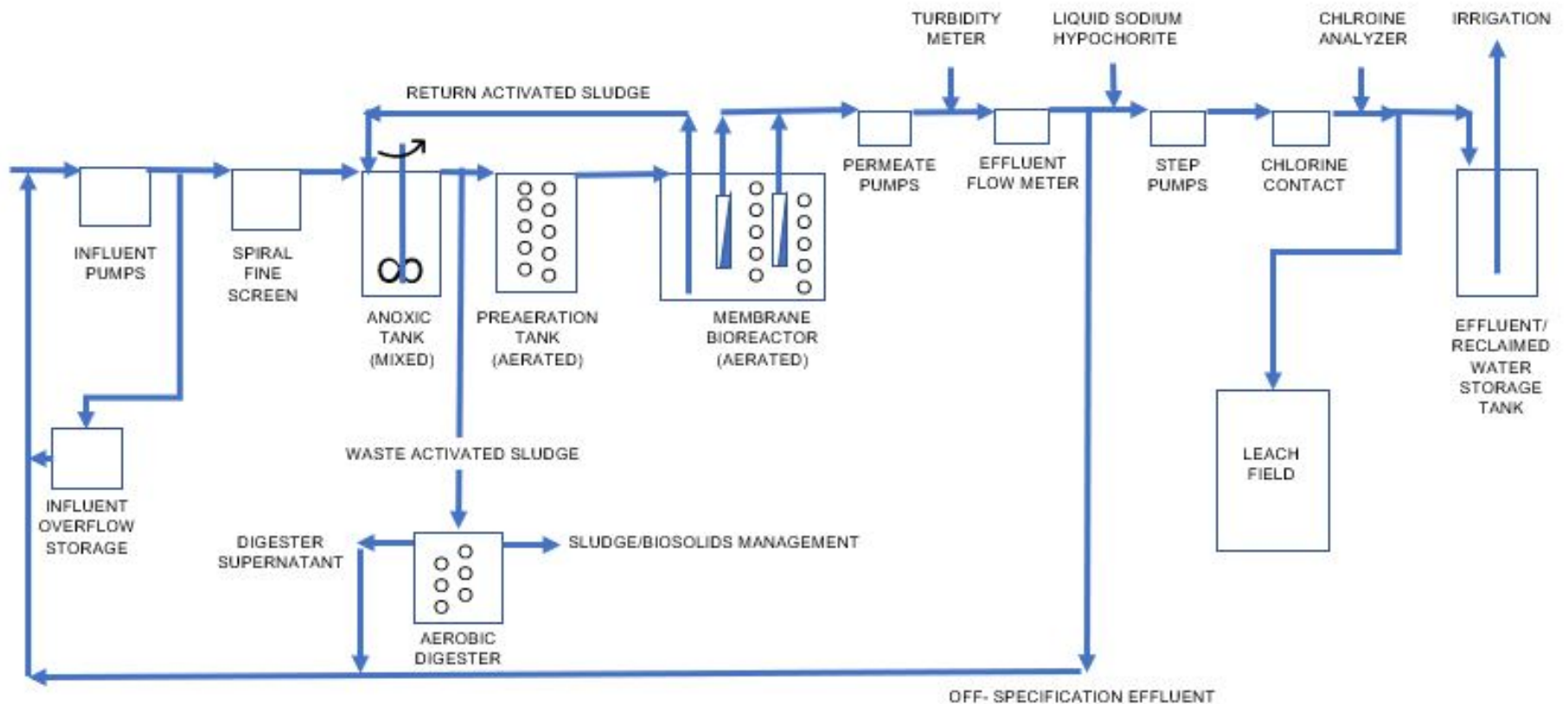
ATTACHMENT B – SITE PLAN MAP

NOTICE OF APPLICABILITY 2014-0153-DWQ-R5344

FOR

FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING;
MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

Drawing Reference: Google Earth



ATTACHMENT C – PROCESS FLOW DIAGRAM
 NOTICE OF APPLICABILITY 2014-0153-DWQ-R5344
 FOR

FRESNO COUNTY DEPARTMENT OF PUBLIC WORKS AND PLANNING
 MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY
 FRESNO COUNTY

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION**

**MONITORING AND REPORTING PROGRAM NO. 2014-0153-DWQ-R5344
FOR
COUNTY OF FRESNO, DEPARTMENT OF PUBLIC WORKS AND PLANNING
MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY
FRESNO COUNTY**

This Monitoring and Reporting Program (MRP) describes requirements for monitoring a wastewater treatment system. This MRP is issued pursuant to Water Code section 13267. The County of Fresno, Department of Public Works and Planning (Discharger) shall not implement any changes to this MRP unless and until a revised MRP is issued by the Regional Water Quality Control Board, Central Valley Region (Central Valley Water Board) or Executive Officer.

Section 13267 of the California Water Code states, in part:

“In conducting an investigation specified in subdivision (a), the regional board may require that any person who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge waste within its region, or any citizen or domiciliary, or political agency or entity of this state who has discharged, discharges, or is suspected of having discharged or discharging, or who proposes to discharge, waste outside of its region that could affect the quality of waters within its region shall furnish, under penalty of perjury, technical or monitoring program reports which the regional board requires. The burden, including costs, of these reports shall bear a reasonable relationship to the need for the report and the benefits to be obtained from the reports. In requiring those reports, the regional board shall provide the person with a written explanation with regard to the need for the reports and shall identify the evidence that supports requiring that person to provide the reports.”

Section 13268 of the California Water Code states, in part:

“(a) Any person failing or refusing to furnish technical or monitoring program reports as required by subdivision (b) of Section 13267, or failing or refusing to furnish a statement of compliance as required by subdivision (b) of Section 13399.2, or falsifying and information provided therein, is guilty of a misdemeanor and may be liable civilly in accordance with subdivision (b).

(b)(1) Civil liability may be administratively imposed by a regional board in accordance with Article 2.5 (commencing with section 13323) of Chapter 5 for a violation of subdivision (a) in an amount which shall not exceed one thousand dollars (\$1,000) for each day in which the violation occurs.”

The Discharger owns and operates the Monte Verdi Estates (CSA 44D) Wastewater Treatment System (Facility or WWTF) that is subject to the Notice of Applicability (NOA) 2014-0153-DWQ-R5344. The NOA enrolls the WWTF under State Water Resources

Control Board Order WQ 2014-0153-DWQ, *General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems* (General Order) upon the rescission of WDRs Order 92-203. The reports required in this MRP are necessary to ensure that the Discharger complies with the NOA and General Order. Pursuant to Water Code section 13267, the Discharger shall implement this MRP and shall submit the monitoring reports described herein.

All samples shall be representative of the volume and nature of the discharge or matrix of material sampled. The name of the sampler, sample type (grab or composite), time, date, location, bottle type, and any preservative used for each sample shall be recorded on the sample chain of custody form. The chain of custody form must also contain all custody information including date, time, and to whom samples were relinquished. If composite samples are collected, the basis for sampling (time or flow weighted) shall be approved by Central Valley Water Board staff.

Field test instruments (such as those used to test pH, dissolved oxygen, and electrical conductivity) may be used provided that they are used by a State Water Resources Control Board, Environmental Laboratory Accreditation Program (ELAP) certified laboratory, or:

1. The user is trained in proper use and maintenance of the instruments;
2. The instruments are field calibrated prior to monitoring events at the frequency recommended by the manufacturer;
3. Instruments are serviced and/or calibrated by the manufacturer at the recommended frequency; and
4. Field calibration reports are maintained and available for at least three years.

TREATMENT SYSTEM MONITORING

A. Influent Monitoring

Influent samples (including flow measurement) shall be taken from a location that provides representative samples of the Facility's influent wastewater quality, prior to any treatment or return flows. At a minimum, influent monitoring shall consist of the following:

Table 1 – Influent Monitoring

Constituent	Units	Sample Type	Monitoring Frequency	Reporting Frequency
Total Nitrogen (as N)	mg/L	Grab	Monthly	Quarterly

B. Effluent Monitoring

Effluent samples shall be taken at an area, after disinfection, that represents the effluent quality and effluent flow distributed to the disposal areas (Use Area or leach field). Effluent samples shall not include potable water added in the effluent/reclaimed water storage tank. At a minimum, effluent monitoring shall include the monitoring specified in Table 2 below. **By 14 October 2021**, the Discharger shall install the necessary meter(s) to measure individual flows sent to the leach field and the effluent/reclaimed water storage tank.

Table 2 – Effluent Monitoring

Constituent	Units	Sample Type	Monitoring Frequency	Reporting Frequency
Flow	MGD	Meter	Continuous (see 1 and 2 below)	Quarterly
BOD ₅	mg/L	Grab	Monthly	Quarterly
TSS	mg/L	Grab	Monthly	Quarterly
pH	SU	Grab	Weekly	Quarterly
EC	µmhos/cm	Grab	Weekly	Quarterly
Total Nitrogen (as N)	mg/L	Grab	Monthly	Quarterly

1. For continuous analyzers, the Discharger shall report documented routine meter maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation.
2. **By 14 October 2021**, the Discharger shall separately measure the effluent discharged to the leach field and Use Area.

DISINFECTION MONITORING

Samples shall be collected immediately downstream of the disinfection system. At a minimum, disinfection system monitoring shall consist of the following:

Table 3 – Disinfection Monitoring

Constituent	Units	Sample Type	Sampling Frequency	Reporting Frequency
Total Coliform Organisms	MPN/100 mL	Grab	Daily (see 1 below)	Quarterly
Chlorine Residual	mg/L	Continuous (see 2 below)	Continuous	Quarterly
CT (see 3 below)	(mg-minutes)/L	Calculate	Daily	Quarterly
Turbidity (see 4 below)	NTU	Meter	Continuous	Quarterly

1. Daily total coliform monitoring is required then the treated effluent is sent to effluent/reclaimed storage tank for reclamation on the Use Area. For days the WWTF only discharges to the leach field, total coliform monitoring is not required.
2. For continuous analyzers, the Discharger shall report documented routine maintenance activities including date, time of day, and duration, in which the analyzer(s) is not in operation.
3. CT is the product of chlorine residual and modal contact time measured at the same point.
4. Turbidity metering shall occur after filtration prior to disinfection.

SUBSURFACE DISPOSAL AREA

In general, monitoring shall be sufficient to determine if wastewater is evenly applied, the disposal area is not saturated, burrowing animals and/or deep-rooted plants are not present, and odors are not present. Inspection of dosing pump controllers, automatic distribution valves, etc. is required to maintain optimum treatment in the disposal area (and any sand or media filter, if present). Monitoring of the leach field system shall, at a minimum, include the monitoring specified in Table 4 below. Monitoring in Table 4 is only required during quarters when discharge of wastewater to the leach field system occurs.

Table 4 – Subsurface Disposal Area Monitoring

Constituent	Inspection Frequency	Reporting Frequency
Saturated Soil Conditions/Water Level in Distribution Boxes	Weekly/Monthly (see 1 below)	Quarterly
Pump Controllers, Automatic Valves, Etc. (see 2 below)	Quarterly	Quarterly
Nuisance Odor Conditions	Quarterly	Quarterly
Plant Growth (see 3 below)	Quarterly	Quarterly
Vectors or Animal Burrowing (see 4 below)	Quarterly	Quarterly

1. From **1 November to 31 May**, the Discharger shall inspect the disposal area **weekly** for saturated conditions and the water level in the leach field distribution boxes. From **1 June to 31 October**, the Discharger shall inspect the disposal area **monthly** for saturated conditions and the water level in distribution boxes.
2. All pump controllers and automatic distribution valves shall be inspected for proper operation as recommended by the manufacturer.
3. Shallow-rooted plants are generally desirable, deep-rooted plants such as trees shall be removed as necessary.
4. Evidence of animals burrowing shall be immediately investigated, and burrowing animal populations controlled as necessary.

SLUDGE/BIOSOLIDS MONITORING

The Discharger shall report the handling and disposal of all solids (e.g., screenings, grit, sludge, biosolids, etc.) generated at the wastewater treatment facility. Records shall include the name/contact information for the hauling company, the type and amount of waste transported, the date removed from the wastewater system, the disposal facility name and address, and copies of analytical data required by the entity accepting the waste. These records shall be submitted as part of the annual monitoring report.

REPORTING

In reporting monitoring data, the Discharger shall arrange the data in tabular form so that the date, sample type (e.g., effluent, solids, etc.), and reported analytical or visual inspection results are readily discernable. The data shall be summarized to clearly illustrate compliance with the General Order and NOA as applicable. The results of any monitoring done more frequently than required at the locations specified in the MRP shall be reported in the next regularly scheduled monitoring report and shall be included in calculations as appropriate.

All regulatory documents, submissions, materials, data, monitoring reports, and correspondence should be converted to a searchable Portable Document Format (PDF) and submitted electronically. Documents that are less than 50MB should be emailed to: centralvalleyfresno@waterboards.ca.gov. Documents that are 50MB or larger should be transferred to a disk and mailed to the appropriate Regional Water Board office, in this case 1685 E Street, Fresno, CA 93706. To ensure that your submittals are routed to the appropriate staff, the following information block should be included in any email used to transmit documents to this office:

Program: Non-15,
Place ID: 201081,
Facility Name: Fresno County Monte Verde Estates (CSA 44D),
Order: 2014-0153-DWQ-R5344

A. Quarterly Monitoring Reports

Quarterly reports shall be submitted to the Regional Water Board on the **first day of the second month after the quarter ends** (e.g., the January-March Quarterly Report is due by May 1st). The reports shall bear the certification and signature of the Discharger's authorized representative. At the minimum, the quarterly reports shall include:

1. Results of all required monitoring.
2. A comparison of monitoring data to the requirements (including the flow limitation), disclosure of any violations of the NOA and/or General Order, and an explanation of any violation of those requirements. Data shall be presented in tabular format.

3. Report the minimum daily chlorine residual concentration and minimum daily CT value.
4. Report average filter effluent turbidity (24-hour period), 95th percentile filter effluent turbidity (24-hour period), and daily maximum turbidity reading when the plant is operating. Specify where wastewater was sent during periods when the discharge exceeded the turbidity specifications.
5. Report daily total flow discharged to the subsurface disposal area and the Use Area (separately beginning 14 October 2021). The monthly average flow to the leach field and Use Area shall be calculated to determine compliance with the NOA flow limitations. Data shall be presented in tabular format.
6. Report the daily volume of potable water added to the effluent/reclaimed water storage tank.
7. Copies of laboratory analytical report(s) and chain of custody form(s).

B. Annual Report

Annual Reports shall be submitted to the Regional Water Board **by February 1st following the monitoring year**. The Annual Report shall include the following:

1. Tabular and graphical summaries of all monitoring data collected during the year.
2. Calculation of the annual average total nitrogen reduction to determine compliance with the 50% total nitrogen limitation specified in the NOA.
3. An evaluation of the performance of the wastewater treatment system, including discussion of the capacity issues, nuisance conditions, system problems and a forecast of the flows anticipated in the next year. A flow rate evaluation, as described in the General Order (Provision E.2.c), shall also be submitted.
4. A discussion of compliance and the corrective action taken, as well as any planned or proposed actions needed to bring the discharge into compliance with the NOA and/or General Order.
5. A discussion of any data gaps and potential deficiencies/redundancies in the monitoring system or reporting program.
6. The name and contact information for the wastewater operator responsible for operation, maintenance, and system monitoring.

C. State Water Board Volumetric Annual Reporting

Per [State Water Resources Control Board's Water Quality Control Policy](https://www.waterboards.ca.gov/water_issues/programs/water_recycling_policy/) (https://www.waterboards.ca.gov/water_issues/programs/water_recycling_policy/), amended in December 2018, dischargers of treated wastewater and recycled water are required to report annually monthly volumes of influent, wastewater produced, and effluent, including treatment level and discharge type. The Discharger shall

submit an annual report to the State Water Board by **April 30 of each calendar year** furnished with the information detailed below. The Discharger must submit this annual report containing monthly data in electronic format via the State Water Board's Internet [GeoTracker system](http://geotracker.waterboards.ca.gov/) (<http://geotracker.waterboards.ca.gov/>). Required data shall be submitted to the GeoTracker database under a site-specific global identification number. Any data will be made publicly accessible as machine readable datasets. The Discharger must report all applicable items listed below:

1. **Influent.** Monthly volume of wastewater collected and treated by the wastewater treatment plant.
2. **Production.** Monthly volume of wastewater treated, specifying level of treatment.
3. **Discharge.** Monthly volume of treated wastewater discharged to land, where beneficial use is not taking place, including evaporation or percolation ponds, overland flow, or spray irrigation disposal, excluding pasture of fields with harvested grounds.
4. **Reuse.** Monthly volume of recycled water distributed.
5. **Reuse Categories.** Annual volume of treated wastewater distributed for beneficial use in compliance with California Code of Regulations, title 22 in each of the use categories listed below:
 - a. Agricultural irrigation: pasture or crop irrigation.
 - b. Landscape irrigation: irrigation of parks, greenbelts, and playgrounds; school yards; athletic fields; cemeteries; residential landscaping, common areas; commercial landscaping; industrial landscaping; and freeway, highway, and street landscaping.
 - c. Golf course irrigation: irrigation of golf courses, including water used to maintain aesthetic impoundments within golf courses.
 - d. Commercial application: commercial facilities, business use (such as laundries and office buildings), car washes, retail nurseries, and appurtenant landscaping that is not separately metered.
 - e. Industrial application: manufacturing facilities, cooling towers, process water, and appurtenant landscaping that is not separately metered.
 - f. Geothermal energy production: augmentation of geothermal fields.
 - g. Other non-potable uses: including but not limited to dust control, flushing sewers, fire protection, fill stations, snow making, and recreational impoundments.
 - h. Groundwater recharge: the planned use of recycled water for replenishment of a groundwater basin or an aquifer that has been designated as a source of water supply for a public water system.

14 April 2021

Includes surface or subsurface application, except for seawater intrusion barrier use.

- i. Reservoir water augmentation: the planned placement of recycled water into a raw surface water reservoir used as a source of domestic drinking water supply for a public water system, as defined in section 116275 of the Health and Safety Code, or into a constructed system conveying water to such a reservoir (Water Code § 13561).
- j. Raw water augmentation: the planned placement of recycled water into a system of pipelines or aqueducts that deliver raw water to a drinking water treatment plant that provides water to a public water system as defined in section 116275 of the Health and Safety Code (Water Code § 13561).
- k. Other potable uses: both indirect and direct potable reuse other than for groundwater recharge, seawater intrusion barrier, reservoir water augmentation, or raw water augmentation.

A letter transmitting the monitoring reports shall accompany each report. The letter shall report violations found during the reporting period, and actions taken or planned to correct the violations and prevent future violations. The transmittal letter shall contain the following penalty of perjury statement and shall be signed by the Discharger or the Discharger's authorized agent:

"I certify under penalty of law that I have personally examined and am familiar with the information submitted in this document and all attachments and that, based on my inquiry of those individuals immediately responsible for obtaining the information, I believe that the information is true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment."

The Discharger shall begin implementing the above monitoring program the first day of the month following rescission of WDRs Order 92-203.

Ordered by:


for PATRICK PALUPA, Executive Officer

4/14/2021
(Date)

GLOSSARY

BOD ₅	Five-day biochemical oxygen demand
CaCO ₃	Calcium carbonate
DO	Dissolved oxygen
CT	The product of total chlorine residual and modal contact time measured at the same point.
EC	Electrical conductivity at 25° C
FDS	Fixed dissolved solids
TDS	Total dissolved solids
TKN	Total Kjeldahl nitrogen
TSS	Total suspended solids
Continuous	The specified parameter shall be measured by a meter continuously.
24-hr Composite	Samples shall be a flow-proportioned composite consisting of at least eight aliquots over a 24-hour period.
Daily	Every day except weekends or holidays.
Twice Weekly	Twice per week on non-consecutive days.
Weekly	Once per week.
Twice Monthly	Twice per month during non-consecutive weeks.
Monthly	Once per calendar month.
Quarterly	Once per calendar quarter.
Semiannually	Once every six calendar months (i.e., two times per year) during non-consecutive quarters.
Annually	Once per year.
mg/L	Milligrams per liter
mg/kg	Milligrams per kilogram
mL/L	Milliliters [of solids] per liter
µg/L	Micrograms per liter
µmhos/cm	Micromhos per centimeter
gpd	Gallons per day
gal/acre/mo	Gallons per acre per month
mgd	Million gallons per day
MPN/100 mL	Most probable number [of organisms] per 100 milliliters
NA	Denotes not applicable
NTU	Nephelometric Turbidity Units
UV	Ultraviolet
mJ/cm ²	Millijoules/cm ²
SU	Standard pH units



GAVIN NEWSOM
GOVERNOR



JARED BLUMENFELD
SECRETARY FOR
ENVIRONMENTAL PROTECTION

Central Valley Regional Water Quality Control Board

TO: Scott J. Hatton *AJH*
Supervising Water Resource Control Engineer

FROM: Alexander S. Mushegan
Senior Water Resource Control Engineer
RCE 84208

Jeff Robins
Water Resource Control Engineer

DATE: 14 April 2021



APPLICABILITY OF COVERAGE UNDER STATE WATER RESOURCES CONTROL BOARD ORDER WQ 2014-0153-DWQ; GENERAL WASTE DISCHARGE REQUIREMENTS FOR SMALL DOMESTIC WASTEWATER TREATMENT SYSTEMS; COUNTY OF FRESNO, DEPARTMENT OF PUBLIC WORKS AND PLANNING; MONTE VERDI ESTATES (CSA 44D) WASTEWATER TREATMENT FACILITY; FRESNO COUNTY

On 6 February 2020, Central Valley Regional Water Quality Control Board (Central Valley Water Board) staff received a Report of Waste Discharge (RWD), including Form 200 and a Title 22 Engineering Report, on behalf of the County of Fresno, Department of Public Works and Planning (Discharger) for the Monte Verdi Estates (County Service Area [CSA] 44D) Wastewater Treatment Facility (Facility or WWTF). The RWD and the Title 22 Engineering Report were submitted for upgrades the wastewater treatment facility and utilization of the treated effluent for landscape irrigation. The RWD technical report and Title 22 Engineering Report were prepared by Provost and Pritchard Consulting Group, signed and stamped by Zheng Teng (RCE 68,783). On 30 July 2020 Central Valley Water Board staff received a Notice of Intent (NOI) for the State Water Resources Control Board's Order WQ 2016-0068-DDW, *Water Reclamation Requirements for Recycled Water Use* (Reclamation General Order). The WWTF is currently regulated under Waste Discharge Requirements (WDRs) Order No. 92-203.

This memorandum provides a summary of Central Valley Water Board's review of the February 2020 RWD and subsequent materials and the applicability of this discharge to be covered under State Water Resources Control Board's Order WQ 2014-0153-DWQ,

KARL E. LONGLEY ScD, P.E., CHAIR | PATRICK PULUPA, ESQ., EXECUTIVE OFFICER

General Waste Discharge Requirements for Small Domestic Wastewater Treatment Systems (General Order).

BACKGROUND INFORMATION

The Facility is located approximately six miles south-southeast of the Friant Dam and 1.35 miles east-southeast of the San Joaquin River, at its closest point (see Attachment A of the Notice of Applicability [NOA]). The WWTF is on Assessor's Parcel Number (APN) No. 580-130-25, located in Section 6, Township 12 S, Range 21 E, MDB&M (36° 54' 53" N, 119° 43' 41" W). The WWTF is located at the southwest corner of Monte Verdi Estates (see Attachment B of the NOA).

CSA 44D was formed on 23 February 1999 to provide water and sewer services to the Monte Verdi Estates Subdivision, which consists of 125 residential lots. The community is entirely residential with no commercial or industrial business present. Currently, there are 123 active sewer service connections.

The WWTF previously included a sequencing batch reactor (SBR) treatment process that disposed effluent through a leach field. Originally, treated recycled water from the SBR system was to be used for irrigation of landscaping in the community common areas. However, the treated effluent did not meet Title 22 recycled water requirements due to multiple issues (e.g., the headworks grinder had no bar screen causing downstream clogging and the decanters in SBR allowed excess solids to pass through to the effluent filters causing the filters to clog). As a result, upgrades were completed at the WWTF in 2019 to convert the treatment process from an SBR process to a membrane bioreactor (MBR) process. With the recent upgrades, the 2020 RWD states the WWTF will produce disinfected tertiary-treated wastewater for reclamation on approximately 12.7 acres of public landscaping (i.e., grass, trees, and bushes) at Monte Verdi Estates and secondary disposal to the existing leach field (maximum design capacity of 32,500 gallons per day [gpd]). The State Water Resources Control Board, Division of Drinking Water (DDW) conditionally approved the Title 22 Engineering Report in June 2020.

WDRs Order 92-203 states the design capacity of the treatment plant and leach field were 35,000 gpd and 32,500 gallons per day (gpd), respectively. The RWD states the upgraded plant has an average monthly flow design capacity of 39,000 gpd. The upgraded wastewater treatment system includes an influent pump station with five underground influent emergency overflow tanks (total combined capacity of 90,000 gallons), two spiral fine screens, a MBR system (consisting of an anoxic tank, pre-aeration tank, and two membrane bioreactors), chlorine disinfection, effluent storage tank, and an aerobic sludge digester (see Attachment C of the NOA for a Process Flow Diagram).

A 1,300 foot, 14-inch diameter, polyvinyl chloride (PVC) pipe (approximate storage capacity of 10,400 gallons) conveys treated wastewater from the WWTF to the effluent/reclaimed water storage tank. The Discharger intends to use the PVC pipe to achieve the required CT (the product of total chlorine residual and modal contact time

measured at the same point) of 450 milligram-minutes per liter with a modal contact time of at least 90 minutes at the CT compliance point. If CT is insufficient at the end of the effluent pipe, effluent will be automatically diverted to the community's leach fields via bypass piping immediately before the inlet to the storage tank (Attachment C).

The entire WWTF is enclosed within a building except for the biofilters, which are used for odor control. The treated wastewater will be used to irrigate, via sprinklers and drip irrigation, 12.7 acres of grass, trees, and bushes that are accessible to the public. There is another 4.6 acres, located outside the community gate and fencing, that will only be irrigated with potable water.

POTENTIAL THREAT TO WATER QUALITY

WDRs Order 92-203 limits the monthly average dry weather discharge (May through October) to 25,000 gpd or less, with a maximum daily discharge of 32,500 gpd. Finding 5 of Order 92-203 also states that the leach field can adequately dispose up to 32,500 gpd of effluent. In a 5 February 2021 memorandum, Jerry Teng (RCE 68783) with Provost & Pritchard Consulting Group states the flow limit to the leach field should be 32,500 gpd as a monthly average instead of daily maximum.

Flow rate data for the past three years are summarized in Table 1 below. The effluent flow rate exceeded the design disposal capacity of the leach field (32,500 gallons per day) in April, June, November, and December 2020. The Discharger speculates flows increased in 2020 due to the COVID-19 pandemic (began in March 2020 and continued throughout 2020) and the associated stay-at-home emergency orders and advisories.

Table 1 - Wastewater Flow (Monthly Average)

Month	2018	2019	2020
January	29,871	25,768	31,903
February	30,179	26,107	29,793
March	30,548	29,246	30,742
April	29,633	27,135	37,503
May	29,571	27,135	32,323
June	29,333	30,732	32,967
July	28,387	31,875	31,667
August	27,129	31,500	29,903
September	28,700	29,667	30,533
October	28,677	28,645	31,390
November	28,600	31,600	33,200
December	30,548	31,258	34,935
Annual Average	29,265	29,222	32,238
Maximum Month	30,548	31,875	37,503

The RWD included a water balance for a typical wet year (2018-2019). The water balance showed a monthly average irrigation water demand of 36,708 gallons per day,

with the highest demand in June and July (approximately 92,000 gallons per day). Overall, the RWD estimates that 55% of the annual effluent flow will be used for irrigation during a typical wet year. The water balance also showed no irrigation demand during December through February and showed all wastewater during these months being discharged to the leach field (32,500 gallons per day). Therefore, the recent high flows reported this year exceeding 32,500 gallons per day are a concern and need to be addressed. Therefore, staff recommends the NOA require the County to submit a work plan to address the high flows and demonstrate the Facility can comply with the 32,500 gpd monthly average flow limitation to the septic tank included in the NOA during winter months when there is little or no reclamation demand.

To satisfy the Title 22 requirements for unrestricted use, the RWD states the Facility will produce disinfected tertiary-treated effluent. Table 2 below summarizes the effluent quality the Facility will produce.

Table 2 – Design Effluent Quality

Constituent	Effluent Concentration
BOD ₅	10 mg/L (Monthly Average) and 20 mg/L (Daily Maximum)
TSS	10 mg/L (Monthly Average) and 20 mg/L (Daily Maximum)
Total Coliform	≤ 2.2 MPN per 100 mL (7-day median) 23 MPN per 100 mL (not more than once in any 30-day period) - No sample shall exceed 240 MPN per 100 mL
CT	Not less than 450 milligrams-minutes per liter at all times, with a modal contact time of at least 90 minutes, based on peak dry weather design flow
Turbidity	- Does not exceed 0.2 NTU more than 5% of the time in a 24-hour period 0.5 NTU at any time
Total Nitrogen	Less than 10 mg/L

The upgraded WWTF began monitoring effluent data in August 2019. The effluent quality from August 2019 to July 2020 is summarized in Table 3. For each cell, the number on the top line is the average reading, the range of data is shown in parentheses in the bottom left, and the number of samples is shown in brackets in the bottom right. For “non-detect” readings, one-half the “reporting limit” was used for calculating average values.

Table 3 - Effluent and Influent Monitoring Data (August 2019 – July 2020)

Month	Effluent BOD ₅ (mg/L)	Effluent TSS (mg/L)	Effluent EC (µmhos/cm)	Influent TKN (mg/L as N)	Effluent Total Nitrogen (mg/L as N)
Aug-19	1.5 (ND-ND) [3]	2.0 (ND-ND) [3]	1100 (1,000-1,300) [3]	48.0 (40-53) [3]	10.2 (2.7-14) [4]
Sep-19	1.5 (ND-ND) [4]	2.0 (ND-ND) [4]	1088 (950 -1,200) [4]	23.0 (18-32) [4]	8.2 (2.1-12) [4]

Month	Effluent BOD ₅ (mg/L)	Effluent TSS (mg/L)	Effluent EC (µmhos/cm)	Influent TKN (mg/L as N)	Effluent Total Nitrogen (mg/L as N)
Oct-19	1.5 (ND-ND) [5]	2.0 (ND-ND) [5]	1062 (810-1,300) [5]	48.6 (32-100) [5]	8.4 (6.8-11) [5]
Nov-19	1.5 (ND-ND) [4]	2.0 (ND-ND) [4]	1,325 (1,200-1,500) [4]	38.8 (28-54) [4]	7.7 (3.7-9.7) [4]
Dec-19	6.0 (ND-11) [4]	2.0 (ND-ND) [4]	1,068 (910-1,400) [4]	47.8 (26-100)[4]	13.4 (9.5-17) [4]
Jan-20	2.8 (ND-6.6) [4]	2.0 (ND-ND) [4]	1,124 (890-1,400) [5]	28.0 (20-37)[5]	15.2 (12-18) [5]
Feb-20	2.1 (ND-3.7) [4]	2.0 (ND-ND) [4]	1,300 (1,100 -1,600) [4]	30.3 (17-43) [3]	12.0 (4-18) [3]
Mar-20	2.0 (ND-3.3) [4]	2.0 (ND-ND) [4]	1,333 (1,100 -1,700) [3]	61.3 (20-120)[3]	7.0 (1.2-12) [4]
Apr-20	1.5 (ND-ND) [5]	2.0 (ND-ND) [5]	1,310 (970-1,700) [5]	51.3 (45-63) [3]	8.7 (ND-15) [5] (see 1 below)
May-20	1.5 (ND-ND) [4]	2.0 (ND-ND) [4]	1,163 (990-1,300) [3]	47.3 (45-49) [3]	19.3 (14-24) [4]
Jun-20	1.5 (ND-ND) [4]	2.0 (ND-ND) [4]	1,200 (1,100-1,400) [4]	54.7 (39-71) [3]	10.7 (7.1-14) [4]
Jul-20	2.9 (ND-5.8) [3]	2.0 (ND-ND) [3]	1,467 (1,300-1,600) [3]	--	12.7 (9.2-15) [3]
Average	2.2 (ND-6.0) [12]	2.0 (ND-2.0) [12]	1,212 (1,062-1,467) [12]	43.6 (23-61.3) [11]	11.1 (7.0-19.3) [12]

ND = non-detect; "--" = no data collected

1. For April 2020, two of the five test dates in April only included a nitrate as nitrogen determination. No TKN or nitrite as nitrogen determination was made on those two dates. The effluent nitrate as nitrogen value alone was used for those dates in calculating the average effluent total nitrogen.

To determine underlying groundwater quality, Central Valley Water Board staff reviewed available well data for nearby wells using the [National Water Quality Monitoring Council' Water Quality Data Portal](https://www.waterqualitydata.us/portal) (<https://www.waterqualitydata.us/portal>). Four wells were located within 3.9 miles of the discharge location (Well #1 = 012S020E26A001M, Well #2 = 012S020E01N001M, Well #3 = 011S020E35L001M, and Well #4 = 011S020E23M001M). The data are summarized in Table 4 below. If there were two sample results from a single day, the results were averaged, and the number of test results is shown in parentheses.

Table 4 - Groundwater Quality from Nearby Wells

Constituent/Parameter	Well #1	Well #2	Well #3	Well #4
Date Sampled	Jan-2014	June-1987	May-2008	March-1966
Well Hole Depth (ft bgs)	≥ 620	≥ 140	≥ 200	≥ 233
EC (µmhos/cm @ 25°C)	353 (2)	562 (2)	245 (2)	229
TDS (mg/L)	248	376	205 (2)	167 (2)
Nitrate (as N) (mg/L)	5.33	11.0	1.75	1.78
pH (s.u.)	7.4 (2)	7.4 (2)	7.2 (2)	9.2
Hardness (mg/L as CaCO ₃)	142	200	77.7	81
Sodium (mg/L)	19.9	36	17.8	16.0
Potassium (mg/L)	3.36	3.2	4.4	1.0
Chloride (mg/L)	7.58	26	15.0	15.0
Sulfate (mg/L)	12.6	41	8.44	7.0
Alkalinity (mg/L as CaCO ₃)	145	161	86.9	81

Central Valley Water Board staff reviewed the [Sustainable Groundwater Management Act \(SGMA\) Data Viewer](https://sgma.water.ca.gov/webgis/?appid=SGMADataViewer#gwlevels) (<https://sgma.water.ca.gov/webgis/?appid=SGMADataViewer#gwlevels>), to determine approximate elevation of and depth to groundwater at the site. Using the Spring 2018 data, groundwater flow appears to be from the east to the west. The groundwater elevation ranges from approximately 277 feet above mean sea level (MSL) on the east side of the site to 264 feet above MSL on the west side of the site. Depth to groundwater ranges from about 55 feet below ground surface (bgs) at the northeast corner of the site to 70 feet bgs at the southwest corner of the site.

The Title 22 Engineering Report designates four areas (Recycled Water Use Areas) for irrigation of tertiary-treated recycled water. These areas are summarized in Table 5 below and shown in Attachment B of the NOA.

Table 5 – Recycled Water Use Areas

Area Number	Approximate Acres (acres)	Use
1	5.2	Lawn and Trees
2	1.7	Lawn and Trees
3	5.5	Leach Field, Lawn and Trees
4	0.3	Lawn and Trees

NITROGEN LIMIT EVALUATION

The General Order requires that wastewater systems with a flow rate greater than 20,000 gpd be evaluated to determine if nitrogen effluent limits are required as described in Attachment 1 of the General Order. In the RWD's nitrogen effluent limit evaluation, the RWD simply states that the Facility has an MBR system with an anoxic

basin (i.e., provide denitrification) and will produce an effluent with an effluent total nitrogen concentration of less than 10 mg/L (as N). However, available data shows the Facility does not consistently achieve a total nitrogen effluent concentration below 10 mg/L. Therefore, based on the site conditions and available information (e.g., additional nitrogen removal to occur in the Recycled Water Use Area and in the vadose zone), the Facility's discharge qualifies for the Low-Threat Category defined in the General Order's Nitrogen Effluent Limit Evaluation. Furthermore, the Facility is located in a Priority 1 Area for the Nitrate Control Program (see below for more information) and is required to comply with the Notice to Comply letter issued in May 2020.

MONITORING REQUIREMENTS

Monitoring requirements included in the following sections from Attachment C of the General Order are appropriate for this discharge:

- Activated Sludge Monitoring (Treatment System Monitoring),
- Disinfection System Monitoring,
- Subsurface Disposal Field Monitoring,
- Land Application Monitoring, and
- Solids Disposal Monitoring.

Land application monitoring requirements are specified in the Monitoring and Report Program for the Notice of Applicability enrolling the Facility under the Reclamation General Order.

SALT AND NITRATE CONTROL PROGRAMS

As part of the Central Valley Salinity Alternatives for Long Term Sustainability (CVSALTS) initiative, the Central Valley Water Board Adopted Basin Plan amendments incorporating new programs for addressing ongoing salt and nitrate accumulation in the Central Valley at its 31 May 2018 Board Meeting (Resolution R5-2018-0034). Pursuant to the Basin Plan amendments, dischargers were sent a Notice to Comply on 5 January 2021 with instructions and obligations for the Salt Control Program within one year of the effective date of the amendments. Upon receipt of the Notice to Comply, the Discharger (CV SALTS ID: 1751) was given until 15 July 2021 to inform the Central Valley Water Board of their choice between Option 1 (Conservative Option for Salt Permitting) or Option 2 (Alternative Option for Salt Permitting).

For the Nitrate Control Program, the WWTF is in a Priority 1 Basin (5-22.08). Dischargers within Priority 1 Basins were issued a Notice to Comply on 29 May 2020 with instructions and obligations for the Nitrate Control Program. Dischargers in a Priority 1 Basin must choose to participate in either Pathway A or Pathway B. If Pathway B is selected, permittees must either be named as a Management Zone member in the Preliminary Management Zone Proposal that must be submitted by 8 March 2021, or they must submit an individual NOI by 7 May 2021 that indicates their

choice of Pathway B. Fresno County is listed as a participant in the Kings Management Zone for the Nitrate Control Program.

[More information on the Salt and Nitrate Control Program](https://www.cvsalinity.org/public-info) may be found on the Internet. (<https://www.cvsalinity.org/public-info>).